

SENATE No. 2185**The Commonwealth of Massachusetts**

PRESENTED BY:

Michael O. Moore

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to responsibly reducing emissions in the transportation sector.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Michael O. Moore</i>	<i>Second Worcester</i>	
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>1/30/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/19/2025</i>
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>2/19/2025</i>
<i>Steven S. Howitt</i>	<i>4th Bristol</i>	<i>2/26/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>3/3/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/4/2025</i>
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	<i>3/5/2025</i>
<i>Brian W. Murray</i>	<i>10th Worcester</i>	<i>3/6/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/6/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>3/6/2025</i>
<i>Jonathan D. Zlotnik</i>	<i>2nd Worcester</i>	<i>3/17/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>3/19/2025</i>
<i>Dylan A. Fernandes</i>	<i>Plymouth and Barnstable</i>	<i>3/27/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/3/2025</i>
<i>William J. Driscoll, Jr.</i>	<i>Norfolk, Plymouth and Bristol</i>	<i>6/4/2025</i>

SENATE No. 2185

By Mr. Moore, a petition (accompanied by bill, Senate, No. 2185) of Michael O. Moore, Michael D. Brady, James K. Hawkins, Angelo J. Puppola, Jr. and other members of the General Court for legislation to responsibly reducing emissions in the transportation sector. State Administration and Regulatory Oversight.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to responsibly reducing emissions in the transportation sector.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9A of chapter 7 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following 3 paragraphs:

3 Beginning in July 1, 2025, all Commonwealth purchases or leases for new medium and
4 heavy-duty trucks shall be for models that are zero emissions vehicles. Further, the
5 Commonwealth shall ensure that its fleet of medium- and heavy-duty, whether owned or leased,
6 is comprised of zero emission vehicles by June 30, 2035. Zero emission vehicle shall mean a
7 battery electric medium- or heavy-duty truck.

8 In the event that there are no battery electric medium- and heavy-duty trucks that meet
9 the Commonwealth's needs or cannot be supported by the Commonwealth's existing charging
10 infrastructure for medium- and heavy-duty trucks, the secretary shall be permitted to purchase
11 any other medium- or heavy-duty truck that is not a battery electric vehicle.

The secretary shall submit to the clerks of the senate and house of representatives and the chairs of the joint committee on transportation a statement annually, not later than July 1, detailing the progress made in meeting the requirements of this section. The report shall include: (i) a complete listing of medium- and heavy-duty trucks leased, owned or assigned to each agency; and (ii) a description of each medium- and heavy-duty truck, including the year, make and model, whether the truck is powered by an internal combustion engine, a mild hybrid engine, a plug-in hybrid motor, a fully battery electric motor, a hydrogen fuel cell electric motor, a compressed liquefied natural gas engine, a propane engine or other means of propulsion. If a zero emission medium- or heavy-duty truck is not purchased or leased, the secretary shall provide, in each instance, a specific explanation as to why a zero emission vehicle could not have sufficiently fulfilled the intended functions.

SECTION 2. Section 142K of chapter 111 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting the following at the end thereof:-

Notwithstanding any general or special law to the contrary, the Department of Environmental Protection shall not implement or enforce the Advanced Clean Trucks and Heavy-Duty Omnibus regulations, as modified to apply to Massachusetts, earlier than July 1, 2027. As used in this section, "Advanced Clean Trucks regulation" means the portion of the California Low Emission Vehicle program that was adopted by the California Air Resources Board, and which would require manufacturers of medium-duty and heavy-duty motor vehicles to sell an increasing percentage of zero-emissions vehicles, including the provisions codified in sections 1905, 1963, and sections 1963.1 through 1963.5 of Title 13 of the California Code of Regulations. "Heavy Duty Omnibus regulation" means the portion of the California Low Emission Vehicle program that was adopted by the California Air Resources Board regulation in

35 title 13, California Code of Regulations sections 2139.5, and 2169.1 through 2169.8 and any
36 other related amendments relative to the emissions standards for nitrogen oxide for medium-duty
37 and heavy-duty motor vehicles.

38 SECTION 3. This act shall take effect immediately upon passage.